

SENATE No. 1775

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to antique firearm detainment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/23/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/14/2025</i>

SENATE No. 1775

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1775) of Bruce E. Tarr, David F. DeCoste and Peter J. Durant for legislation relative to antique firearm detainment. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to antique firearm detainment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 20 of Chapter 135 of the Acts of 2024 is hereby amended by inserting in the
2 definition of a firearm after the words "shall not include any antique firearm" the following:-- ",
3 except when the person who owns or possesses the antique firearm is subject to: (i) an order for
4 suspension or surrender issued pursuant to sections 3B or 3C of Chapter 209A; (ii) a permanent
5 or temporary protection order issued pursuant to said chapter 209A; (iii) any order described in
6 18 U.S.C. 922(g)(8); (iv) permanent or temporary harassment prevention order issued pursuant
7 to chapter 258E; (v) an extreme risk protection order issued pursuant to sections 131R up to and
8 including 131Y; or (vi) an order similar to the orders described in clauses, (i),(ii),(iii),(iv),(v) or
9 (vi) issued by another jurisdiction,"